

FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 26-12

Served: September 1, 2026

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission (the “Commission”) by Samsung Electronics America, Inc. (the “Complainant”) against CMA CGM S.A. (the “Respondent”). Complainant states that the Commission has subject-matter jurisdiction over this complaint pursuant to the Shipping Act of 1984, 46 U.S.C. § 41301, and over Respondent as a vessel-operating “ocean common carrier,” as that term is defined by 46 U.S.C. § 40102(7) and (18).

Complainant is a corporation organized and existing under the laws of the state of New York, with a place of business in Englewood Cliffs, New Jersey.

Complainant identifies Respondent as a société anonyme existing under the laws of the Republic of France with a principal place of business in Marseille, France.

Complainant alleges that Respondent violated 46 U.S.C. § 41102(c), and 46 C.F.R. § 545.4 and 545.5. Complainant alleges these violations arose from the assessment of demurrage and detention charges arising from delays and circumstances beyond Complainant’s control; failure to perform inland transportation obligations; improper cargo holds, billing, and dispute resolution practices; and other acts or omissions of Respondent.

An answer to the complaint must be filed with the Commission within 25 days after the date of service.

The full text of the complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/26-12/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by September 1, 2027, and the final decision of the Commission shall be issued by March 15, 2028.

A handwritten signature in black ink that reads "David Eng". The signature is written in a cursive style with a large, stylized "D" and a long, sweeping underline.

David Eng
Secretary